the frigidity which renders the man impotent would not disable the woman. Yet there may be a natural impediment from another cause, namely stricture, and then we must judge of stricture in the woman in the same way as of frigidity in the man.

Whether a spell can be an impediment to marriage?

Objection 1: It would seem that a spell cannot be an impediment to marriage. For the spells in question are caused by the operation of demons. But the demons have no more power to prevent the marriage act than other bodily actions; and these they cannot prevent, for thus they would upset the whole world if they hindered eating and walking and the like. Therefore they cannot hinder marriage by spells.

Objection 2: Further, God's work is stronger than the devil's. But a spell is the work of the devil. Therefore it cannot hinder marriage which is the work of God.

Objection 3: Further, no impediment, unless it be perpetual, voids the marriage contract. But a spell cannot be a perpetual impediment, for since the devil has no power over others than sinners, the spell will be removed if the sin be cast out, or by another spell, or by the exorcisms of the Church which are employed for the repression of the demon's power. Therefore a spell cannot be an impediment to marriage.

Objection 4: Further, carnal copulation cannot be hindered, unless there be an impediment to the generative power which is its principle. But the generative power of one man is equally related to all women. Therefore a spell cannot be an impediment in respect of one woman without being so also in respect of all.

On the contrary, It is stated in the Decretals (XXXIII, qu. 1, cap. iv): "If by sorcerers or witches . . . ," and further on, "if they be incurable, they must be separated."

Further, the demons' power is greater than man's: "There is no power upon earth that can be compared with him who was made to fear no one" (Job 41:24). Now through the action of man, a person may be rendered incapable of carnal copulation by some power or by castration; and this is an impediment to marriage. Therefore much more can this be done by the power of a demon.

I answer that, Some have asserted that witchcraft is nothing in the world but an imagining of men who ascribed to spells those natural effects the causes of which are hidden. But this is contrary to the authority of holy men who state that the demons have power over men's bodies and imaginations, when God allows them: wherefore by their means wizards can work certain signs. Now this opinion grows from the root of unbelief or incredulity, because they do not believe that demons exist save only in the imagination of the common people, who ascribe to the demon the terrors which a man conjures from his thoughts, and because, owing to a vivid imagination, certain shapes such as he has in his thoughts become apparent to the senses, and then he believes that he sees the demons. But such assertions are rejected by the true faith whereby we believe that angels fell from heaven, and that the demons exist, and that by reason of their subtle nature they are able to do many things which we cannot; and those who induce them to do such things are called wizards.

Wherefore others have maintained that witchcraft can set up an impediment to carnal copulation, but that no such impediment is perpetual: hence it does not void the marriage contract, and they say that the laws asserting this have been revoked. But this is contrary to actual facts and to the new legislation which agrees with the old.

We must therefore draw a distinction: for the inability to copulate caused by witchcraft is either perpetual and then it voids marriage, or it is not perpetual and then it does not void marriage. And in order to put this to practical proof the Church has fixed the space of three years in the same way as we have stated with regard to frigidity (A[1]). There is, however this difference between a spell and frigidity, that a person who is impotent through frigidity is equally impotent in relation to one as to another, and consequently when the marriage is dissolved, he is not permitted to marry another woman. whereas through witchcraft a man may be rendered impotent in relation to one woman and not to another, and consequently when the Church adjudges the marriage to be dissolved, each party is permitted to seek another partner in marriage.

Reply to Objection 1: The first corruption of sin whereby man became the slave of the devil was transmitted to us by the act of the generative power, and for this reason God allows the devil to exercise his power of witchcraft in this act more than in others. Even so the power of witchcraft is made manifest in serpents more than in other animals according to Gn. 3, since the devil tempted the woman through a serpent.

Reply to Objection 2: God's work may be hindered by the devil's work with God's permission; not that the devil is stronger than God so as to destroy His works by violence.

Reply to Objection 3: Some spells are so perpetual that they can have no human remedy, although God might afford a remedy by coercing the demon, or the demon by desisting. For, as wizards themselves admit, it does not always follow that what was done by one kind of witchcraft can be destroyed by another kind, and even though it were possible to use witchcraft as a remedy, it would nevertheless be reckoned to be perpetual, since nowise ought one to invoke the demon's help by witchcraft. Again, if the devil has been given power over a person on account of sin, it does not follow that his power ceases with the sin, because the punishment sometimes continues after the fault has been removed. And again, the exorcisms of the Church do not always avail to repress the demons in all their molestations of the body, if God will it so, but they always avail against those assaults of the demons against which they are chiefly instituted.

Reply to Objection 4: Witchcraft sometimes causes an impediment in relation to all, sometimes in relation to one only: because the devil is a voluntary cause not acting from natural necessity. Moreover, the impediment resulting from witchcraft may result from an impression made by the demon on a man's imagination, whereby he is deprived of the concupiscence that moves him in regard to a particular woman and not to another.

Whether madness is an impediment to marriage?

Objection 1: It would seem that madness is not an impediment to marriage. For spiritual marriage which is contracted in Baptism is more excellent than carnal marriage. But mad persons can be baptized. Therefore they can also marry.

Objection 2: Further, frigidity is an impediment to marriage because it impedes carnal copulation, which is not impeded by madness. Therefore neither is marriage impeded thereby.

Objection 3: Further, marriage is not voided save by a perpetual impediment. But one cannot tell whether madness is a perpetual impediment. Therefore it does not void marriage.

Objection 4: Further, the impediments that hinder marriage are sufficiently contained in the verses given above (Q[50]). But they contain no mention of madness. Therefore, etc.

On the contrary, Madness removes the use of reason more than error does. But error is an impediment to marriage. Therefore madness is also.

Further, mad persons are not fit for making contracts. But marriage is a contract. Therefore, etc.

I answer that, The madness is either previous or subsequent to marriage. If subsequent, it nowise voids the marriage, but if it be previous, then the mad person either has lucid intervals, or not. If he has, then although it is not safe for him to marry during that interval, since he would not know how to educate his children, yet if he marries, the marriage is valid. But if he has no lucid intervals, or marries outside a lucid interval, then, since there can be no consent without use of reason, the marriage will be invalid.

Reply to Objection 1: The use of reason is not necessary for Baptism as its cause, in which way it is necessary for matrimony. Hence the comparison fails. We have, however, spoken of the Baptism of mad persons (TP, Q[68], A[12]).

Reply to Objection 2: Madness impedes marriage on the part of the latter's cause which is the consent, although not on the part of the act as frigidity does. Yet the Master treats of it together with frigidity, because both are defects of nature (Sent. iv, D, 34).

Reply to Objection 3: A passing impediment which hinders the cause of marriage, namely the consent, voids marriage altogether. But an impediment that hinders the act must needs be perpetual in order to void the marriage.

Reply to Objection 4: This impediment is reducible to error, since in either case there is lack of consent on the part of the reason.

Whether marriage is annulled by the husband committing incest with his wife's sister?

Objection 1: It would seem that marriage is not annulled by the husband committing incest with his wife's sister. For the wife should not be punished for her husband's sin. Yet she would be punished if the marriage were annulled. Therefore, etc.

Objection 2: Further, it is a greater sin to know one's own relative, than to know the relative of one's wife. But the former sin is not an impediment to marriage. Therefore neither is the second.

Objection 3: Further, if this is inflicted as a punishment of the sin, it would seem, if the incestuous husband marry even after his wife's death, that they ought to be separated: which is not true.

Objection 4: Further, this impediment is not mentioned among those enumerated above (Q[50]). Therefore it does not void the marriage contract.

On the contrary, By knowing his wife's sister he contracts affinity, with his wife. But affinity voids the marriage contract. Therefore the aforesaid incest does also.

Further, by whatsoever a man sinneth, by the same also is he punished. Now such a man sins against marriage. Therefore he ought to be punished by being deprived of marriage.

I answer that, If a man has connection with the sister or other relative of his wife before contracting marriage, even after his betrothal, the marriage should be broken off on account of the resultant affinity. If, however, the connection take place after the marriage has been contracted and consummated, the marriage must not be altogether dissolved: but the husband loses his right to marital intercourse, nor can he demand it without sin. And yet he must grant it if asked, because

the wife should not be punished for her husband's sin. But after the death of his wife he ought to remain without any hope of marriage, unless he receive a dispensation on account of his frailty, through fear of unlawful intercourse. If, however, he marry without a dispensation, he sins by contravening the law of the Church, but his marriage is not for this reason to be annulled. This suffices for the Replies to the Objections, for incest is accounted an impediment to marriage not so much for its being a sin as on account of the affinity which it causes. For this reason it is not mentioned with the other impediments, but is included in the impediment of affinity.

Whether defective age is an impediment to marriage?

Objection 1: It would seem that deficient age is not an impediment to marriage. For according to the laws children are under the care of a guardian until their twenty-fifth year. Therefore it would seem that before that age their reason is not sufficiently mature to give consent, and consequently that ought seemingly to be the age fixed for marrying. Yet marriage can be contracted before that age. Therefore lack of the appointed age is not an impediment to marriage.

Objection 2: Further, just as the tie of religion is perpetual so is the marriage tie. Now according to the new legislation (cap. Non Solum, De regular. et transeunt.) no one can be professed before the fourteenth year of age. Therefore neither could a person marry if defective age were an impediment.

Objection 3: Further, just as consent is necessary for marriage on the part of the man, so is it on the part of the woman. Now a woman can marry before the age of fourteen. Therefore a man can also.

Objection 4: Further, inability to copulate, unless it be perpetual and not known, is not an impediment to marriage. But lack of age is neither perpetual nor unknown. Therefore it is not an impediment to marriage.

Objection 5: Further, it is not included under any of the aforesaid impediments (Q[50]), and consequently would seem not to be an impediment to marriage.

On the contrary, A Decretal (cap. Quod Sedem, De frigid et malefic.) says that "a boy who is incapable of marriage intercourse is unfit to marry." But in the majority of cases he cannot pay the marriage debt before the age of fourteen (De Animal. vii). Therefore, etc.

Further, "There is a fixed limit of size and growth for all things in nature" according to the Philosopher (De Anima ii, 4): and consequently it would seem that, since marriage is natural, it must have a fixed age by defect of which it is impeded.

I answer that, Since marriage is effected by way of a contract, it comes under the ordinance of positive law like other contracts. Consequently according to law (cap. Tua, De sponsal. impub.) it is determined that marriage may not be contracted before the age of discretion when each party is capable of sufficient deliberation about marriage, and of mutual fulfilment of the marriage debt, and that marriages otherwise contracted are void. Now for the most part this age is the fourteenth year in males and the twelfth year in women: but since the ordinances of positive law are consequent upon what happens in the majority of cases, if anyone reach the required perfection before the aforesaid age, so that nature and reason are sufficiently developed to supply the lack of age, the marriage is not annulled. Wherefore if the parties who marry before the age of puberty have marital intercourse before the aforesaid age, their marriage is none the less perpetually indissoluble.

Reply to Objection 1: In matters to which nature inclines there is not required such a development of reason in order to deliberate, as in other matters: and therefore it is possible after deliberation to consent to marriage before one is able to manage one's own affairs in other matters without a guardian.

Reply to Objection 2: The same answer applies, since the religious vow is about matters outside the inclination of nature, and which offer greater difficulty than marriage.

Reply to Objection 3: It is said that woman comes to the age of puberty sooner than man does (De Animal. ix); hence there is no parallel between the two.

Reply to Objection 4: In this case there is an impediment not only as to inability to copulate, but also on account of the defect of the reason, which is not yet qualified to give rightly that consent which is to endure in perpetuity.

Reply to Objection 5: The impediment arising from defective age, like that which arises from madness, is reducible to the impediment of error; because a man has not yet the full use of his free-will.

OF DISPARITY OF WORSHIP AS AN IMPEDIMENT TO MARRIAGE (SIX ARTICLES)

We must now consider disparity of worship as an impediment to marriage. Under this head there are six points of inquiry:

(1) Whether a believer can marry an unbeliever?

(2) Whether there is marriage between unbelievers?

(3) Whether a husband being converted to the faith can remain with his wife if she be unwilling to be converted?

(4) Whether he may leave his unbelieving wife?

(5) Whether after putting her away he may take another wife?

(6) Whether a husband may put aside his wife on account of other sins as he may for unbelief?

Whether a believer can marry an unbeliever?

Objection 1: It would seem that a believer can marry an unbeliever. For Joseph married an Egyptian woman, and Esther married Assuerus: and in both marriages there was disparity of worship, since one was an unbeliever and the other a believer. Therefore disparity of worship previous to marriage is not an impediment thereto.

Objection 2: Further, the Old Law teaches the same faith as the New. But according to the Old Law there could be marriage between a believer and an unbeliever, as evidenced by Dt. 21:10 seqq.: "If thou go out to the fight . . . and seest in the number of the captives a beautiful woman and lovest her, and wilt have her to wife . . . thou shalt go in unto her, and shalt sleep with her, and she shall be thy wife." Therefore it is lawful also under the New Law.

Objection 3: Further, betrothal is directed to marriage. Now there can be a betrothal between a believer and an unbeliever in the case where a condition is made of the latter's future conversion. Therefore under the same condition there can be marriage between them.

Objection 4: Further, every impediment to marriage is in some way contrary to marriage. But unbelief is not contrary to marriage, since marriage fulfills an office of nature whose dictate faith surpasses. Therefore disparity of worship is not an impediment to marriage.

Objection 5: Further, there is sometime disparity of worship even between two persons who are baptized, for instance when, after Baptism, a person falls into heresy. Yet if such a person marry a believer, it is nevertheless a valid marriage. Therefore disparity of worship is not an impediment to marriage.

On the contrary, It is written (2 Cor. 6:14): "What concord hath light with darkness? [*Vulg.: 'What fellowship hath light with darkness? And what concord hath Christ with Belial?']" Now there is the greatest concord between husband and wife. Therefore one who is in the light of faith cannot marry one who is in the darkness of unbelief.

Further, it is written (Malachi 2:11): "Juda hath profaned the holiness of the Lord, which he loved, and hath married the daughter of a strange god." But such had not been the case if they could have married validly. Therefore disparity of worship is an impediment to marriage.

I answer that, The chief good of marriage is the offspring to be brought up to the worship of God. Now since education is the work of father and mother in common, each of them intends to bring up the child to the worship of God according to their own faith. Consequently if they be of different faith, the intention of the one will be contrary to the intention of the other, and therefore there cannot be a fitting marriage between them. For this reason disparity of faith previous to marriage is an impediment to the marriage contract.

Reply to Objection 1: In the Old Law it was allowable to marry with certain unbelievers, and forbidden with others. It was however especially forbidden with regard to inhabitants of the land of Canaan, both because the Lord had commanded them to be slain on account of their obstinacy, and because it was fraught with a greater danger, lest to wit they should pervert to idolatry those whom they married or their children, since the Israelites were more liable to adopt their rites and customs through dwelling among them. But it was permitted in regard to other unbelievers, especially when there could be no fear of their being drawn into idolatry. And thus Joseph, Moses, and Esther married unbelievers. But under the New Law which is spread throughout the whole world the prohibition extends with equal reason to all unbelievers. Hence disparity of worship previous to marriage is an impediment to its being contracted and voids the contract.

Reply to Objection 2: This law either refers to other nations with whom they could lawfully marry, or to the case when the captive woman was willing to be converted to the faith and worship of God.

Reply to Objection 3: Present is related to present in the same way as future to future. Wherefore just as when marriage is contracted in the present, unity of worship is required in both contracting parties, so in the case of a betrothal, which is a promise of future marriage, it suffices to add the condition of future unity of worship.

Reply to Objection 4: It has been made clear that disparity of worship is contrary to marriage in respect of its chief good, which is the good of the offspring.

Reply to Objection 5: Matrimony is a sacrament: and therefore so far as the sacramental essentials are concerned, it requires purity with regard to the sacrament of faith, namely Baptism, rather than with regard to interior faith. For which reason also this impediment is not called disparity of faith, but disparity of worship which concerns outward service, as stated above (Sent. iii, D, 9, Q[1], A[1], qu. 1). Consequently if a believer marry a baptized heretic, the marriage is valid,

although he sins by marrying her if he knows her to be a heretic: even so he would sin were he to marry an excommunicate woman, and yet the marriage would not be void: whereas on the other hand if a catechumen having right faith but not having been baptized were to marry a baptized believer, the marriage would not be valid.

Whether there can be marriage between unbelievers?

Objection 1: It would seem that there can be no marriage between unbelievers. For matrimony is a sacrament of the Church. Now Baptism is the door of the sacraments. Therefore unbelievers, since they are not baptized, cannot marry any more than they can receive other sacraments.

Objection 2: Further, two evils are a greater impediment to good than one. But the unbelief of only one party is an impediment to marriage. Much more, therefore, is the unbelief of both, and consequently there can be no marriage between unbelievers.

Objection 3: Further, just as there is disparity of worship between believer and unbeliever, so can there be between two unbelievers, for instance if one be a heathen and the other a Jew. Now disparity of worship is an impediment to marriage, as stated above (A[1]). Therefore there can be no valid marriage at least between unbelievers of different worship.

Objection 4: Further, in marriage there is real chastity. But according to Augustine (De Adult. Conjug. i, 18) there is no real chastity between an unbeliever and his wife, and these words are quoted in the Decretals (XXVIII, qu. i, can. Sic enim.). Neither therefore is there a true marriage.

Objection 5: Further, true marriage excuses carnal intercourse from sin. But marriage contracted between unbelievers cannot do this, since "the whole life of unbelievers is a sin," as a gloss observes on Rom. 14:23, "All that is not of faith is sin." Therefore there is no true marriage between unbelievers.

On the contrary, It is written (1 Cor. 7:12): "If any brother hath a wife that believeth not, and she consent to dwell with him, let him not put her away." But she is not called his wife except by reason of marriage. Therefore marriage between unbelievers is a true marriage.

Further, the removal of what comes after does not imply the removal of what comes first. Now marriage belongs to an office of nature, which precedes the state of grace, the principle of which is faith. Therefore unbelief does not prevent the existence of marriage between unbelievers.

I answer that, Marriage was instituted chiefly for the good of the offspring, not only as to its begetting---since this can be effected even without marriage---but also as to its advancement to a perfect state, because everything intends naturally to bring its effect to perfection. Now a twofold perfection is to be considered in the offspring. one is the perfection of nature, not only as regards the body but also as regards the soul, by those means which are of the natural law. The other is the perfection of grace: and the former perfection is material and imperfect in relation to the latter. Consequently, since those things which are for the sake of the end are proportionate to the end, the marriage that tends to the first perfection is imperfect and material in comparison with that which tends to the second perfection. And since the first perfection can be common to unbelievers and believers, while the second belongs only to believers, it follows that between unbelievers there is marriage indeed, but not perfected by its ultimate perfection as there is between believers.

Reply to Objection 1: Marriage was instituted not only as a sacrament, but also as an office of nature. And therefore, although marriage is not competent to unbelievers, as a sacrament dependent

on the dispensation of the Church's ministers, it is nevertheless competent to them as fulfilling an office of nature. And yet even a marriage of this kind is a sacrament after the manner of a habit, although it is not actually since they do not marry actually in the faith of the Church.

Reply to Objection 2: Disparity of worship is an impediment to marriage, not by reason of unbelief, but on account of the difference of faith. For disparity of worship hinders not only the second perfection of the offspring, but also the first, since the parents endeavor to draw their children in different directions, which is not the case when both are unbelievers.

Reply to Objection 3: As already stated (ad 1) there is marriage between unbelievers, in so far as marriage fulfills an office of nature. Now those things that pertain to the natural law are determinable by positive law: and therefore if any law among unbelievers forbid the contracting of marriage with unbelievers of a different rite, the disparity of worship will be an impediment to their intermarrying. They are not, however, forbidden by Divine law, because before God, however much one may stray from the faith, this makes no difference to one's being removed from grace: nor is it forbidden by any law of the Church who has not to judge of those who are without.

Reply to Objection 4: The chastity and other virtues of unbelievers are said not to be real, because they cannot attain the end of real virtue, which is real happiness. Thus we say it is not a real wine if it has not the effect of wine.

Reply to Objection 5: An unbeliever does not sin in having intercourse with his wife, if he pays her the marriage debt, for the good of the offspring, or for the troth whereby he is bound to her: since this is an act of justice and of temperance which observes the due circumstance in pleasure of touch; even as neither does he sin in performing acts of other civic virtues. Again, the reason why the whole life of unbelievers is said to be a sin is not that they sin in every act, but because they cannot be delivered from the bondage of sin by that which they do.

Whether the husband, being converted to the faith, may remain with his wife is she be unwilling to be converted?

Objection 1: It would seem that when a husband is converted to the faith he cannot remain with his wife who is an unbeliever and is unwilling to be converted, and whom he had married while he was yet an unbeliever. For where the danger is the same one should take the same precautions. Now a believer is forbidden to marry an unbeliever for fear of being turned away from the faith. Since then if the believer remain with the unbeliever whom he had married previously, the danger is the same, in fact greater, for neophytes are more easily perverted than those who have been brought up in the faith, it would seem that a believer, after being converted, cannot remain with an unbeliever.

Objection 2: Further, "An unbeliever cannot remain united to her who has been received into the Christian faith" (Decretals, XXVIII, qu. 1, can. Judaei). Therefore a believer is bound to put away a wife who does not believe.

Objection 3: Further, a marriage contracted between believers is more perfect than one contracted between unbelievers. Now, if believers marry within the degrees forbidden by the Church, their marriage is void. Therefore the same applies to unbelievers, and thus a believing husband cannot remain with an unbelieving wife, at any rate, if as an unbeliever he married her within the forbidden degrees.

Objection 4: Further, sometimes an unbeliever has several wives recognized by his law. If, then, he can remain with those whom he married while yet an unbeliever, it would seem that even after his conversion he can retain several wives.

Objection 5: Further, it may happen that after divorcing his first wife he has married a second, and that he is converted during this latter marriage. It would seem therefore that at least in this case he cannot remain with this second wife.

On the contrary, The Apostle counsels him to remain (1 Cor. 7:12).

Further, no impediment that supervenes upon a true marriage dissolves it. Now it was a true marriage when they were both unbelievers. Therefore when one of them is converted, the marriage is not annulled on that account; and thus it would seem that they may lawfully remain together.

I answer that, The faith of a married person does not dissolve but perfects the marriage. Wherefore, since there is true marriage between unbelievers, as stated above (A[2], ad 1), the marriage tie is not broken by the fact that one of them is converted to the faith, but sometimes while the marriage tie remains, the marriage is dissolved as to cohabitation and marital intercourse, wherein unbelief and adultery are on a par, since both are against the good of the offspring. Consequently, the husband has the same power to put away an unbelieving wife or to remain with her, as he has to put away an adulterous wife or to remain with her. For an innocent husband is free to remain with an adulterous wife in the hope of her amendment, but not if she be obstinate in her sin of adultery, lest he seem to approve of her disgrace; although even if there be hope of her amendment he is free to put her away. In like manner the believer after his conversion may remain with the unbeliever in the hope of her conversion, if he see that she is not obstinate in her unbelief, and he does well in remaining with her, though not bound to do so: and this is what the Apostle counsels (1 Cor. 7:12).

Reply to Objection 1: It is easier to prevent a thing being done than to undo what is rightly done. Hence there are many things that impede the contracting of marriage if they precede it, which nevertheless cannot dissolve it if they follow it. Such is the case with affinity (Q[55], A[6]): and it is the same with disparity of worship.

Reply to Objection 2: In the early Church at the time of the apostles, both Jews and Gentiles were everywhere converted to the faith: and consequently the believing husband could then have a reasonable hope for his wife's conversion, even though she did not promise to be converted. Afterwards, however, as time went on the Jews became more obstinate than the Gentiles, because the Gentiles still continued to come to the faith, for instance, at the time of the martyrs, and at the time of Constantine and thereabouts. Wherefore it was not safe then for a believer to cohabit with an unbelieving Jewish wife, nor was there hope for her conversion as for that of a Gentile wife. Consequently, then, the believer could, after his conversion, cohabit with his wife if she were a Gentile, but not if she were a Jewess, unless she promised to be converted. This is the sense of that decree. Now, however, they are on a par, namely Gentiles and Jews, because both are obstinate; and therefore unless the unbelieving wife be willing to be converted, he is not allowed to cohabit with her, be she Gentile or Jew.

Reply to Objection 3: Non-baptized unbelievers are not bound by the laws of the Church, but they are bound by the ordinances of the Divine law. Hence unbelievers who have married within the degrees forbidden by the Divine law, whether both or one of them be converted to the faith, cannot continue in a like marriage. But if they have married within the degrees forbidden by a

commandment of the Church, they can remain together if both be converted, or if one be converted and there be hope of the other's conversion.

Reply to Objection 4: To have several wives is contrary to the natural law by which even unbelievers are bound. Wherefore an unbeliever is not truly married save to her whom he married first. Consequently if he be converted with all his wives, he may remain with the first, and must put the others away. If, however, the first refuse to be converted, and one of the others be converted, he has the same right to marry her again as he would have to marry another. We shall treat of this matter further on (A[5]).

Reply to Objection 5: To divorce a wife is contrary to the law of nature, wherefore it is not lawful for an unbeliever to divorce his wife. Hence if he be converted after divorcing one and marrying another, the same judgment is to be pronounced in this case as in the case of a man who had several wives, because if he wish to be converted he is bound to take the first whom he had divorced and to put the other away.

Whether a believer can, after his conversion, put away his unbelieving wife if she be willing to cohabit with him without insult to the Creator?

Objection 1: It would seem that a believer, after his conversion, cannot put away his unbelieving wife if she be willing to cohabit with him without insult to the Creator. For the husband is more bound to his wife than a slave to his master. But a converted slave is not freed from the bond of slavery, as appears from 1 Cor. 7:21; 1 Tim. 6:1. Therefore neither can a believing husband put away his unbelieving wife.

Objection 2: Further, no one may act to another's prejudice without the latter's consent. Now the unbelieving wife had a right in the body of her unbelieving husband. If, then, her husband's conversion to the faith could be prejudicial to the wife, so that he would be free to put her away, the husband could not be converted to the faith without his wife's consent, even as he cannot receive orders or vow continence without her consent.

Objection 3: Further, if a man, whether slave or free, knowingly marry a bondwoman, he cannot put her away on account of her different condition. Since, then, the husband, when he married an unbeliever, knew that she was an unbeliever, it would seem that in like manner he cannot put her away on account of her unbelief.

Objection 4: Further, a father is in duty bound to work for the salvation of his children. But if he were to leave his unbelieving wife, the children of their union would remain with the mother, because "the offspring follows the womb," and thus their salvation would be imperiled. Therefore he cannot lawfully put away his unbelieving wife.

Objection 5: Further, an adulterous husband cannot put away an adulterous wife, even after he has done penance for his adultery. Therefore if an adulterous and an unbelieving husband are to be judged alike, neither can the believer put aside the unbeliever, even after his conversion to the faith.

On the contrary, are the words of the Apostle (1 Cor. 7:15,16).

Further, spiritual adultery is more grievous than carnal. But a man can put his wife away, as to cohabitation, on account of carnal adultery. Much more, therefore, can he do so on account of unbelief, which is spiritual adultery.

I answer that, Different things are competent and expedient to man according as his life is of one kind or of another. Wherefore he who dies to his former life is not bound to those things to which he was bound in his former life. Hence it is that he who vowed certain things while living in the world is not bound to fulfill them when he dies to the world by adopting the religious life. Now he who is baptized is regenerated in Christ and dies to his former life, since the generation of one thing is the corruption of another, and consequently he is freed from the obligation whereby he was bound to pay his wife the marriage debt, and is not bound to cohabit with her when she is unwilling to be converted, although in a certain case he is free to do so, as stated above (A[3]), just as a religious is free to fulfill the vows he took in the world, if they be not contrary to his religious profession, although he is not bound to do so.

Reply to Objection 1: Bondage is not inconsistent with the perfection of the Christian religion, which makes a very special profession of humility. But the obligation to a wife, or the conjugal bond, is somewhat derogatory to the perfection of Christian life, the highest state of which is in the possession of the continent: hence the comparison fails. Moreover one married party is not bound to the other as the latter's possession, as a slave to his master, but by way of a kind of partnership, which is unfitting between unbeliever and believer as appears from 2 Cor. 6:15; hence there is no comparison between a slave and a married person.

Reply to Objection 2: The wife had a right in the body of her husband only as long as he remained in the life wherein he had married, since also when the husband dies the wife "is delivered from the law of her husband" (Rom. 7:3). Wherefore if the husband leave her after he has changed his life by dying to his former life, this is nowise prejudicial to her. Now he who goes over to the religious life dies but a spiritual death and not a bodily death. Wherefore if the marriage be consummated, the husband cannot enter religion without his wife's consent, whereas he can before carnal connection when there is only a spiritual connection. On the other hand, he who is baptized is even corporeally buried together with Christ unto death; and therefore he is freed from paying the marriage debt even after the marriage has been consummated.

We may also reply that it is through her own fault in refusing to be converted that the wife suffers prejudice.

Reply to Objection 3: Disparity of worship makes a person simply unfit for lawful marriage, whereas the condition of bondage does not, but only where it is unknown. Hence there is no comparison between an unbeliever and a bondswoman.

Reply to Objection 4: Either the child has reached a perfect age, and then it is free to follow either the believing father or the unbelieving mother, or else it is under age, and then it should be given to the believer notwithstanding that it needs the mother's care for its education.

Reply to Objection 5: By doing penance the adulterer does not enter another life as an unbeliever by being baptized. Hence the comparison fails.

Whether the believer who leaves his unbelieving wife can take another wife?

Objection 1: It would seem that the believer who leaves his unbelieving wife cannot take another wife. For indissolubility is of the nature of marriage, since it is contrary to the natural law to divorce one's wife. Now there was true marriage between them as unbelievers. Therefore their marriage can nowise be dissolved. But as long as a man is bound by marriage to one woman he

cannot marry another. Therefore a believer who leaves his unbelieving wife cannot take another wife.

Objection 2: Further, a crime subsequent to marriage does not dissolve the marriage. Now, if the wife be willing to cohabit without insult to the Creator, the marriage tie is not dissolved, since the husband cannot marry another. Therefore the sin of the wife who refuses to cohabit without insult to the Creator does not dissolve the marriage so that her husband be free to take another wife.

Objection 3: Further, husband and wife are equal in the marriage tie. Since, then, it is unlawful for the unbelieving wife to marry again while her husband lives, it would seem that neither can the believing husband do so.

Objection 4: Further, the vow of continence is more favorable than the marriage contract. Now seemingly it is not lawful for the believing husband to take a vow of continence without the consent of his unbelieving wife, since then the latter would be deprived of marriage if she were afterwards converted. Much less therefore is it lawful for him to take another wife.

Objection 5: Further, the son who persists in unbelief after his father's conversion loses the right to inherit from his father: and yet if he be afterwards converted, the inheritance is restored to him even though another should have entered into possession thereof. Therefore it would seem that in like manner, if the unbelieving wife be converted, her husband ought to be restored to her even though he should have married another wife: yet this would be impossible if the second marriage were valid. Therefore he cannot take another wife.

On the contrary, Matrimony is not ratified without the sacrament of Baptism. Now what is not ratified can be annulled. Therefore marriage contracted in unbelief can be annulled, and consequently, the marriage tie being dissolved, it is lawful for the husband to take another wife.

Further, a husband ought not to cohabit with an unbelieving wife who refuses to cohabit without insult to the Creator. If therefore it were unlawful for him to take another wife he would be forced to remain continent, which would seem unreasonable, since then he would be at a disadvantage through his conversion.

I answer that, When either husband or wife is converted to the faith the other remaining in unbelief, a distinction must be made. For if the unbeliever be willing to cohabit without insult to the Creator---that is without drawing the other to unbelief---the believer is free to part from the other, but by parting is not permitted to marry again. But if the unbeliever refuse to cohabit without insult to the Creator, by making use of blasphemous words and refusing to hear Christ's name, then if she strive to draw him to unbelief, the believing husband after parting from her may be united to another in marriage.

Reply to Objection 1: As stated above (A[2]), the marriage of unbelievers is imperfect, whereas the marriage of believers is perfect and consequently binds more firmly. Now the firmer tie always looses the weaker if it is contrary to it, and therefore the subsequent marriage contracted in the faith of Christ dissolves the marriage previously contracted in unbelief. Therefore the marriage of unbelievers is not altogether firm and ratified, but is ratified afterwards by Christ's faith.

Reply to Objection 2: The sin of the wife who refuses to cohabit without insult to the Creator frees the husband from the tie whereby he was bound to his wife so as to be unable to marry again during her lifetime. It does not however dissolve the marriage at once, since if she were converted from her blasphemy before he married again, her husband would be restored to her. But the marriage is dissolved by the second marriage which the believing husband would be unable to accomplish unless he were freed from his obligation to his wife by her own fault.